Reply to a data request: the answer

Two replies: the answer to an access request, item by item as Article 15 lists them, and the confirmation that data has been corrected, erased, restricted, transferred or no longer used, with the notice to recipients.

FOR

Organisations in the EU, Iceland, Liechtenstein or Norway that receive a request under Articles 15 to 22 of the GDPR (the EU General Data Protection Regulation): the data protection officer, privacy team or small-business owner who answers. Notes for Italy and Germany where the rules differ.

NOT COVERED

Formats and procedures set by sector law (for example medical records); the portability format for a given industry; national rules on which authority to name, beyond Italy and Germany (see the person letters in this set).

LAW AS OF

GDPR (Regulation (EU) 2016/679) as published on EUR-Lex, read 7 Nov 2026; EDPB Guidelines 01/2022 on the right of access, version 2.1 (adopted 28 March 2023, minor corrections 30 May 2024); Regulation (EEC, Euratom) 1182/71, Article 3; Italian Data Protection Code (Legislative Decree 196/2003) as on Normattiva (updated to the act published on 19 Feb 2026), read 4 to 8 Nov 2026; Garante complaint page (docweb 4535524), read 7 Nov 2026; BDSG as published on gesetze-im-internet.de, last amended by the Act of 12 May 2026, read 7 Nov 2026

VERSION

1.1, 8 November 2026

Answering an access request

The European Data Protection Board (EDPB), the body of all EU data protection regulators, describes three parts: confirmation, access to the data (mainly by a copy), and the information in Article 15(1) and (2) (EDPB Guidelines 01/2022, pp. 3 to 4). The information may start from the privacy notice or the record of processing, *"but may have to be updated and tailored"* to the person (para. 20, p. 13).

ITEM	WHAT TO WRITE	WHERE
Confirmation	Whether you process data about the person. If not, say so.	Article 15(1)
Copy of the data	All the data, in a form they can keep. If they asked by e-mail, *"in a commonly used electronic form"*. First copy free.	Article 15(3)
Purposes	The purposes in this person's case, and which data serves which purpose; the EDPB recommends adding the legal basis	15(1)(a); EDPB para. 114, p. 38
Categories	Only the categories that apply to this person	15(1)(b); EDPB para. 115, p. 38
Recipients	The actual recipients by name, unless impossible or the request is manifestly unfounded or excessive	15(1)(c); EDPB para. 117, p. 39
Storage period	How long, or the start and length of the period; not just a reference to statutory periods	15(1)(d); EDPB para. 118, p. 39
Rights	The rights that apply to this processing, and the right to complain to a regulator	15(1)(e) and (f); EDPB para. 119, pp. 39 to 40
Source	*"any available information as to their source"*, if not collected from the person	15(1)(g); EDPB para. 120, p. 40
Automated decisions	Whether they exist; if so, meaningful information about the logic, the significance and the consequences	15(1)(h); EDPB para. 121, p. 40
Transfers	The safeguards for transfers outside the EU	Article 15(2)

Other points from the EDPB: give the data as it stood when the request arrived, even if inaccurate or unlawfully processed, and correct or delete it afterwards: *"It has to give access first and delete the data afterwards"* (Example 6, p. 19). Say to which point in time the answer refers (text after Example 6, p. 19). Send it securely, for example encrypted or password-protected (para. 40, p. 19). Remove only what would adversely affect others (Article 15(4); p. 5).

Confirming other action

After rectification, erasure or restriction, the organisation tells each recipient of the data, unless impossible or disproportionate, and tells the person who the recipients are if they ask (Article 19). After erasure of data it made public, it takes reasonable steps to inform other controllers (Article 17(2)). It tells the person before lifting a restriction (Article 18(3)). After an objection to direct marketing, the data *"shall no longer be processed for such purposes"* (Article 21(3)). For portability, the data is given *"in a structured, commonly used and machine-readable format"* (Article 20(1)).

Letter A: answer to an access request

Attach the copy and the annex. Delete what does not apply: the password sentence if the copy goes by post, the paragraph on removed parts if nothing was withheld. For the format, write for example: a PDF file and a CSV export.

ORGANISATION NAME, ADDRESS,
DATA PROTECTION CONTACT OR DATA PROTECTION OFFICER

NAME OF THE PERSON, ADDRESS OR E-MAIL THEY USED

DATE

Subject: Your request for access to your personal data

Your request of DATE OF THE REQUEST, received on DATE RECEIVED. Our reference: REFERENCE.

We confirm that we PROCESS / DO NOT PROCESS personal data about you. This answer describes our processing as it stood on DATE THE REQUEST WAS RECEIVED.

We enclose a copy of your personal data (FORMAT OF THE COPY). The file is protected; we will send the password separately by CHANNEL FOR THE PASSWORD.

The annex sets out, for your data: the purposes and legal basis; the categories of data; the recipients by name; how long we keep each kind of data; where we obtained data not collected from you; whether we make automated decisions about you; and the safeguards for any transfer outside the EU (Article 15(1) and (2) GDPR).

We have removed WHAT WAS WITHHELD because it concerns other people or OTHER REASON (Article 15(4) GDPR). The rest is complete.

You have the right to ask us to correct or erase your data, to restrict its use, and to object to its use , AND TO RECEIVE THE DATA YOU GAVE US IN A REUSABLE FORMAT. You can contact CONTACT. You also have the right to lodge a complaint with a data protection authority, in COUNTRY NAME OF THE AUTHORITY (Article 77 GDPR).

Kind regards,

NAME AND ROLE OF THE PERSON SIGNING, for ORGANISATION NAME

Letter B: confirmation of action taken

Keep the paragraph for the right that was used. Delete the others. Delete the sentence on data kept if everything was erased, and the sentence on recipients not informed if all were informed.

ORGANISATION NAME, ADDRESS,
DATA PROTECTION CONTACT OR DATA PROTECTION OFFICER

NAME OF THE PERSON, ADDRESS OR E-MAIL THEY USED

DATE

Subject: Your request: what we have done

Your request of DATE OF THE REQUEST, received on DATE RECEIVED. Our reference: REFERENCE.

Rectification: we have corrected DATA to read NEW DATA AND ADDED YOUR SUPPLEMENTARY STATEMENT (Article 16 GDPR).

Erasure: we have erased ALL DATA, OR THE DATA ERASED (Article 17 GDPR). We are keeping DATA KEPT because ARTICLE 17(3) EXCEPTION AND THE FACTS; it will be deleted on DATE.

Restriction: we have restricted the use of DATA. We will only store it, except as Article 18(2) GDPR allows, and we will tell you before we lift the restriction (Article 18(3) GDPR).

Objection: we have stopped using your data for DIRECT MARKETING / PURPOSE from DATE (Article 21 GDPR).

Portability: the data you provided, in FORMAT, is ENCLOSED, OR SENT TO: ORGANISATION (Article 20 GDPR).

We have informed the following recipients of your data of this RECTIFICATION, ERASURE OR RESTRICTION: NAMES OF RECIPIENTS. We have not informed RECIPIENT NOT INFORMED because WHY IMPOSSIBLE OR DISPROPORTIONATE (Article 19 GDPR).

If you are not satisfied, you can contact CONTACT, and you have the right to lodge a complaint with NAME OF THE DATA PROTECTION AUTHORITY (Article 77 GDPR).

Kind regards,

NAME AND ROLE OF THE PERSON SIGNING, for ORGANISATION NAME

How the organisation handles it: Handling data requests: procedure and register. Its replies: confirm receipt, confirm identity, extend the time limit, refuse or charge a fee, the answer.

The letters from the person: access, rectification, erasure, restriction, portability, objection, automated decisions.

Sources

GDPR, Regulation (EU) 2016/679 (EUR-Lex) • Used for: Articles 12, 15 to 22, 37, 38, 77 and 79, recitals; Fino's copy of each article is linked in the text

EDPB Guidelines 01/2022 on data subject rights: right of access, version 2.1 • Used for: How regulators read the right of access, time limits and identity checks (paragraphs and pages cited)

Regulation (EEC, Euratom) 1182/71 on periods, dates and time limits (EUR-Lex) • Used for: How a period in months is counted

Fino: Response timeline • Used for: Counting the one-month deadline